		Contract, Breach of Contract, and Declaratory Relief. Bourbon Holdings filed an answer to the Cross-Complaint on 6-17-24. Therefore, Bourbon Holdings is already a party to the action and not a third party entitled to intervene pursuant to section 387.
13	**Stranger v. McKenna Motors HB** 2020-01152783 Petition to confirm arbitration award	Defendants (McKenna Motors HB, Neda Ingram and Danny McKenna) motion to confirm the arbitrator's decision dismissing Plaintiff's claims for failure to prosecute is GRANTED. The request for costs against Plaintiff is DENIED. The arbitrator's award dated 2/9/26 found that Plaintiff had failed to prosecute the action and made it difficult for Defendants to defend the action, mandating dismissal of the over-five-year-old case. The arbitrator found that although FEHA does not generally allow Defendants to recover attorney fees, Defendants were entitled to recover costs and expenses as the prevailing party under the California Arbitration Act and JAMS Employment Arbitration Rules. The arbitrator awarded Defendants total fees and costs of $76,267.50 which included reimbursement of the arbitrator's nonrefundable $64,805.00 retainer, the arbitrator's fees of $7,062.50 for reviewing the motion to dismiss, and Defendants' fees/costs associated with drafting the motion to dismiss. The arbitrator did not make a finding that the action was frivolous, unreasonable, or groundless under FEHA. Although the arbitrator identified the monetary award as "sanctions," in fact the award constituted the arbitrator's fees as well as certain of Defendants' fees and costs. Under Armendariz and Government Code section 12965, the arbitrator's award of sanctions, fees, and/or costs against Plaintiff exceeded their legal authority. Defendants shall give notice.
15	**Melchor v. Kia America, Inc.** 2025-01493559 Demurrer to Complaint	Defendant Kia America, Inc.'s Demurrer to Plaintiff's Complaint is OVERRULED. Defendant's request for judicial notice of KIA having opted into the new lemon law procedures of Code of Civil Procedure section 871.20 as shown on the official California Department of Consumer Affairs website is granted. As to causes of action 1st – 4th, Defendant asserts these causes of action are barred by the six-year statute of repose set out under Code of Civ. Proc. § 871.20.

Plaintiff alleges he entered into a warranty contract regarding a 2018 Kia Optima on 6/30/18. The complaint was filed six years, 11 months, and 28 days later, on 6/27/25.

Code of Civ. Proc. § 871.21, became effective on 1/1/25.
Here, Defendant maintains Plaintiff filed this action nearly seven years from the date of original delivery of the vehicle, making the Song-Beverly claims untimely, and Plaintiff fails to plead facts establishing tolling under subdivision (c).

In opposition, Plaintiff asserts that section 871.21's time limits do not apply to the present case because they do not apply retrospectively. Specifically, Plaintiff argues that requiring him to file suit within six years would have imposed a filing deadline in June 2024, before the new time limitation even became effective.

"It is well established that the Legislature may reduce the period within which an action may be commenced, since a statute of limitations affects the remedy only and does not impair the cause of action itself. However, a statute shortening the period of limitations cannot be applied retroactively to wipe out an accrued cause of action that is not barred by the then applicable statute of limitations. To avoid the unconstitutional effect of retroactive application, a statute must be applied prospectively to such causes of action. Even when applied prospectively, the claimant must be allowed a reasonable time within which to proceed with his cause of action." See *Niagara Fire Ins. Co. v. Cole* (1965) 235 Cal.App.2d 40, 42–43.

Plaintiff has pled sufficient facts to support timely claims under the Song-Beverly Act.

5th Cause of Action – Fraudulent Inducement-Concealment:

Defendant contends this claim is barred by the three-year statute of limitations for fraud under Code of Civ. Proc. § 338(d).

Here, Plaintiff's complaint alleges, "Plaintiff discovered Defendant's wrongful conduct alleged herein shortly before filing this Complaint as the Subject Vehicle continued to exhibit symptoms of defects following Defendant's unsuccessful attempts to repair them. However, Defendant failed to provide restitution pursuant to the Song-Beverly Consumer Warranty Act."

At the pleading stage, this allegation is sufficient to show that Plaintiff discovered the facts constituting fraud within less than three years before filing his complaint.

Defendant shall give notice.